

Baisakhi Dutta vs Chandan Dutta on 8 March, 2021

Author: Arindam Sinha

Bench: Arindam Sinha

08.03.2021

08

RP Ct.04

FAT 345 of 2019

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IA NO.CAN 1 of 2020 (Old No.CAN 1966 of 2020)

Baisakhi Dutta

Versus

Chandan Dutta

Ms. Malaysree Maity

.... For respondent

Ms. Maity, learned advocate appears on behalf of respondent-husband. She submits, her client had volunteered to, inter alia, prepare paper books. Notice of arrival of lower Court record has been received on 4 th March, 2021. Applicant goes unrepresented.

The application is for stay of operation of impugned judgment and decree, by which the marriage stood dissolved. We find by order dated 2nd February, 2021 we had restrained respondent from altering his status till 30 th April, 2021 or further orders, whichever is earlier. On query from Court Ms. Maity submits, her client has not remarried. He has notice of pendency of this appeal and has taken steps for its expeditious hearing and disposal. As such, respondent suffers bar of section 15 in Hindu Marriage Act, 1955.

CAN 1966 of 2020 is disposed as above.

List on 23rd March, 2021. Respondent will communicate this order to learned advocate for applicant.

(Arindam Sinha, J.) (Suvra Ghosh, J)